



File No.: EXP202203741

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: The Spanish Agency for Data Protection became aware through a complaint of certain facts that could violate data protection legislation. On March 25, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate Mr. A.A.A. in relation to the following facts:

The publication on a Twitter profile of a video showing an assault on a minor by what appear to be two other minors, while a third records it. The video went viral, as noted by the complainant, who links three news articles that refer to these facts.

SECOND: On April 24, 2023, and without having been able to determine within the established timeframe for these preliminary investigation proceedings the authorship of the reported facts, the Spanish Agency for Data Protection decided to declare the expiration of the preliminary investigation proceedings opened in that procedure and to open new investigation proceedings incorporating into these new proceedings the documentation that comprised the preliminary proceedings that were declared expired.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

In the tweet published as a complaint, although it is not possible to directly identify the assaulted minor due to the poor quality of the recording nor the aggressors as they are hooded, in the environment where the events occurred, it could be possible to identify the minor by the haircut and other characteristic features. It is verified that the purpose of this is to give visibility to the assault against the minor. This tweet has been reproduced more than 3 million times up to the time of the complaint, and the tweet has been retweeted nearly 17,000 times.

In the profile of the publication, the name of the individual being reported appears.

Multiple media outlets echoed these facts without, in their publications, illustrated with stills from the original tweet, being able to identify any of the aggressors or the assaulted minor. According to these articles, the assault took place in a locality of ***LOCALIDAD.1 and the regional police were investigating the facts.

On March 25, 2022, an urgent precautionary measure for the removal directed at TWITTER INTERNATIONAL COMPANY through TWITTER SPAIN S.L. was issued, which expired on April 28, 2022, for non-compliance.

Despite the above, on March 28, 2022, it was verified that the tweet mentioned in the complaint had been deleted from the social network, probably due to the action of the Ertzaintza as, according to the media, they were investigating these facts.

In order to inform the Public Prosecutor's Office of these facts, on April 22, 2022, this complaint was forwarded to that prosecutor's office.

As a result of this transfer, on May 24, 2022, this Agency received, with registration number REGAGE22e00020289785, a letter sent by the Public Prosecutor's Office - Cybercrime Unit informing that the reported facts had led to the initiation of file ***EXPEDIENTE.1.

Requested from the Public Prosecutor's Office whether, based on the opened proceedings, it had been possible to determine the identifying data and address of the holder of the profile in which the

video of the assault in question was published, on October 25, 2023, this Agency received a letter sent by that Prosecutor's Office stating that, according to the information provided by the Delegate Prosecutor (...), the National Police Corps could not identify the person behind the aforementioned profile.

Requested from Twitter International Company to inform this Agency of the IP address from which the reported content was published, on December 21, 2023, this Agency received via email a response from this entity with a file of the audit result of this IP in which no data is listed.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), it is competent to resolve

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these investigative actions the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Consent of Minors

In the terms indicated in Article 7.2 of the LOPDGDD, "The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

III

Legitimacy for Processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction."

Including images that identify or make a person identifiable, as well as their name, in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is generally consent. And it is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

For this processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in

order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

IV

Conclusion

To identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing involving a massive flow of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the decision to admit the complaint or from the date of the decision to initiate it when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, the following has been concluded:

At the time the complaint was filed, the content for which removal was requested from TWITTER was available. Subsequently, the removal of the reported content has been confirmed.

After making a request for information to TWITTER INTERNATIONAL COMPANY requesting the IP address of the user responsible for the publication, this company, on December 21, 2023, responded with a file of the audit results of this IP, in which no data is listed. Consequently, it is not possible...

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It was not possible to identify the responsible party for the publication.

In summary, the tweet that contained this video was deleted from the social network TWITTER three days after the complaint was received, and it has not been possible to determine the complete identifying data of the profile in which the video that prompted the complaint was published.

Thus, since it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO INFORM the complainant of this resolution.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and

in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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